

HOUSE No. 1448

The Commonwealth of Massachusetts

PRESENTED BY:

Michael P. Kushmerek

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act creating higher education opportunities for students with intellectual disabilities, autism spectrum disorders, and other developmental disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>1/17/2025</i>

HOUSE No. 1448

By Representative Kushmerek of Fitchburg, a petition (accompanied by bill, House, No. 1448) of Michael P. Kushmerek for legislation to create higher education opportunities for students with intellectual disabilities, autism, and other developmental disabilities. Higher Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act creating higher education opportunities for students with intellectual disabilities, autism spectrum disorders, and other developmental disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 15A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “opportunities,” in line 10, the
3 following:- , including individuals with severe intellectual disabilities, autism spectrum
4 disorders, and other developmental disabilities.

5 SECTION 2. Said section 1 of said Chapter 15A, as so appearing, is hereby amended by
6 striking out after the word “beyond,” in line 19, the following:- and

7 SECTION 3. Said section 1 of chapter 15A of the General Laws, as appearing in the 2022
8 Official Edition, is hereby amended by striking out, in line 19, the word “and.”

9 SECTION 4. Said section 1 of said chapter 15A, as so appearing, is hereby further
10 amended by striking out, in line 23, the word “levels” and inserting in place thereof the following
11 words:- levels; and

(d) to provide inclusive opportunities for individuals with severe intellectual disabilities, autism spectrum disorders, and other developmental disabilities in order to improve academic achievement, employment, and independent living, and to enhance the learning environment for all students.

SECTION 5. The fourth paragraph of Section 7 of said Chapter 15A, as so appearing, is hereby amended by inserting after the word “students,” in line 33, the following:- , and students with severe intellectual disabilities, autism spectrum disorders, and other developmental disabilities.

SECTION 6. The second paragraph of Section 7A of said Chapter 15A, as so appearing, is hereby amended by striking out the word “and,” in lines 24 and 82; and by inserting after the word “sources,” in lines 25 and 83, the following:- ; and (10) improving access for students with severe intellectual disabilities, autism spectrum disorders, and other developmental disabilities.

SECTION 7. Section 19 of said Chapter 15A, as so appearing, is hereby amended by inserting after the third paragraph, the following paragraph:- Such guidelines shall provide tuition and fee waivers for students with severe intellectual disabilities, autism spectrum disorders, and other developmental disabilities participating in courses and campus activities pursuant to section 39A. The commonwealth, not the institutions of public higher education, shall bear the cost of such tuition and fee waivers.

SECTION 8. Said Chapter 15A, as so appearing, is hereby amended by inserting after section 39 the following section:-

Section 39A. Students with severe intellectual disabilities, autism spectrum disorders, and other developmental disabilities enrolled in public secondary schools shall be allowed to enroll

in credit-bearing and noncredit courses in public higher education institutions in the commonwealth that include nondisabled students, including enrollment in credit-bearing courses in audit status for students who may not meet course prerequisites or requirements, with necessary supports, services, and accommodations provided by the student's school committee, to facilitate the student's enrollment and to support inclusion in academic courses, extracurricular activities, internships, work experiences, and other aspects of the institution of higher education's regular postsecondary program and provide a free and appropriate public education. Such students shall not be required to: take any standardized college entrance aptitude test; have a high school diploma or its equivalent; meet minimum academic course requirements; meet minimum grade point average requirements; or obtain a passing score on the statewide assessment tests , utilized as a basis for competency determinations pursuant to section 1D of Chapter 69 of the General Laws.

SECTION 9. Said Chapter 15A, as so appearing, is hereby amended by inserting after section 27 the following section: 27A:-

Section 27A. The board of higher education, in consultation with the executive office of education, the department of elementary and secondary education, and the executive office of health and human services shall take steps necessary to include students with intellectual disabilities, autism spectrum disorders, and other developmental disabilities in the residence life of all public institutions of higher education, with accommodations, supports, and services necessary to enable inclusive dormitory living.

SECTION 10. The executive office of education shall promulgate guidelines pursuant to section 17 of chapter 71B of the General Laws on or before January 1, 2027.

56 SECTION 11. Section 2 of Chapter 71B of the General Laws, as so appearing, is hereby
57 amended by inserting the following phrase after the tenth item of the third paragraph:-

58 ; and (12) For older students ages 18-22, options including continuing education,
59 enrollment in credit and noncredit courses that include students without disabilities in an
60 institution of higher education, development of independent living skills, development of skills
61 necessary for seeking, obtaining, and maintaining jobs, development of skills to access
62 community services, and development of skills for self-management of medical needs.